

THE MERCHANT'S COMPANION

THE *LEX MERCATORIA*
(13TH–15TH CENTURY)



IN CONTEXT

FOCUS

International commercial law

BEFORE

c. 700 CE Rhodian Sea Law combines various existing laws and customs to form a body of maritime law.

c. 1010 The *Tavole Amalfitane* is the first body of maritime law to be recognized throughout much of the Mediterranean.

AFTER

1622 English merchant and free trade advocate Gerard de Malynes' *Consuetudo vel Lex Mercatoria* is a clear exposition of merchant law.

1940 UNIDROIT is set up, providing an arbitration forum for private commercial cases and beginning a new era for the *Lex Mercatoria*.

The problem of which law should regulate merchants who trade internationally is as old as commerce itself. Greek, Phoenician, and Roman traders all developed systems of what was essentially private law—not regulated by the state—to resolve disputes and enhance confidence in trading networks that relied on trust.

The Romans in particular developed a means to regulate dealings between Roman citizens and those who were not subjects of the empire. This *jus gentium* (“law of people”) had its origins in the 3rd century BCE and became redundant after the collapse of the